

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-

TERESE DURDEN and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

_____ /

**COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTON) AND
DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), TERESE DURDEN and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Chapter 83 of Florida Statutes and procedurally as authorized by Section 723.061(1)(a) of Florida Statutes.

2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.

3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #14, Palmetto, Manatee County, Florida 34221.

4. Pursuant to Florida Statutes §723.002(1) the residential rental agreement between the Defendant, TERESE DURDEN, and the Plaintiff, for the rental of mobile home located on Lot 14 is governed by Florida Statute Chapter 83 pertaining to residential tenancies, specifically:

723.002 Application of chapter. —

(1) The provisions of this chapter apply to any residential tenancy in which a mobile home is placed upon a rented or leased lot in a mobile home park in which 10 or more lots are offered for rent or lease. This chapter shall not be construed to apply to any other tenancy, including a tenancy in which both a mobile home and a mobile home lot are rented or leased by the mobile home resident or a tenancy in which a rental space is offered for occupancy by recreational-vehicle-type units which are primarily designed as temporary living quarters for recreational camping or travel use and which either have their own motor power or are mounted on or drawn by another vehicle. When both the mobile home and lot are rented or when fewer than 10 lots are available for rent or lease, the tenancy shall be governed by the provisions of part II of chapter 83, the "Florida Residential Landlord and Tenant Act." However, this chapter shall continue to apply to any tenancy in a park even though the number of lots offered in that park has been reduced to below 10 if that tenancy was subject to the provisions of this chapter prior to the reduction in lots.

5. Defendant, TERESE DURDEN, a natural person, agreed to reside at 900 9th Ave East, Lot #14, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Defendant's acknowledgment of receipt of the Rules and Regulations is attached to this Complaint as Plaintiff's **EXHIBIT A.**

6. Defendant TERESE DURDEN agreed to rent the mobile home located on Lot 14 of Colonial Manor which rental included both the real property known as Lot 14 and the mobile home on the lot.

7. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #14, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

8. Plaintiff, as landlord, leased to Defendant, TERESE DURDEN, Lot 14, of the

above stated mobile home park at a monthly rental fee.

9. For the year 2026, the monthly rent is the sum of \$1,350.00, consisting of 875.00 per month for the base rent and \$475.00 for the home rental. A true copy of the lease is attached as **EXHIBIT B**.

10. Defendant, TERESE DURDEN, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,390.00 which represents the month of June 2026 including fees for rental of the home and late fees, which, according to the Rules and Regulations of Colonial Manor are additional rent.

11. On June 16, 2026, Plaintiff served on Defendants, TERESE DURDEN and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #14, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's **EXHIBIT C**.

12. On June 16, 2026, Plaintiff also served on Defendants, TERESE DURDEN and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4). A copy of this Notice and certified proof of mailing is attached and marked Plaintiff's **EXHIBIT D**.

13. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.

14. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in Lot 14 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the

knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

15. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

16. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

17. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

18. The total lot rental amounts due as of June 16, 2026, which must be paid into the registry of the Court, are \$1,390.00, plus \$1,350.00 for July 2026 and \$1,350.00 per month, due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, TERESE DURDEN and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

21. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

22. Plaintiff re-alleges the facts contained within paragraphs 1 through 20 as though fully set forth herein.

23. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

24. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, TERESE DURDEN, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, TERESE DURDEN and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #14, Palmetto, Florida, 34221, on this 6th day of July, 2026.

William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

COLONIAL MOBILE MANOR 55+ COMMUNITY

900 9TH AVE E
PALMETTO, FLORIDA 34221
PHONE: (941) 722-5191

LOT: 14

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND REGULATIONS OF
COLONIAL MOBILE MANOR 55+ COMMUNITY, WHICH I (WE) AGREE TO ABIDE
BY.

DATE: 3/4/26

SIGNATURE: Leresa A. Purdin

SIGNATURE: _____

EXHIBIT

A

Colonial Mobile Manor
900 9th Ave East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-3191

Lease Agreement

This lease is made this 15 day of April, 2026, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Leese Darden hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 14 in Colonial Mobile Manor in Palmetto, Florida for a term to commence April 15 2026 and terminate December 31st annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("The Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The tenant agrees to pay a deposit of \$ 1350

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 1350 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900 per year, payable \$ 75 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45. In addition, Resident agrees to pay all applicable State and Local taxes.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated _____, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: C. J. Reake

X Leese A. Darden
Resident

X _____
Resident

EXHIBIT

B

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: June 16, 2026

TO: Teresa Durden
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 14, Lot # 14
Palmetto, Florida 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # 4589 0710 5970 3303 2787 08

and All Unknown/Unauthorized Occupants
Lot #
Florida
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 875.00 per month.

You have failed to pay all the past due lot rental amounts for the months of thru June, 2026, in the amount of \$ 1390.00, consisting of the items shown below. As shown in the table below, the total lot rental amount due as of the date of this demand is \$ 1390.00, payable to the address above.

- " Rent for the billing period of June 2026 in the amount of \$875.00
- " Home Rental for the billing period of June 2026 in the amount of \$475.00
- " Late fee for June in the amount of \$45.00

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays.) If the total lot rental amount now due is not paid on or before June 23, 2026, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY.

EXHIBIT

C

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: June 16, 2026

BY: Chad Peake
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 14, Lot # 14)

POSTED ON: June 16, 2026 @ 8 AM
(date/time)

POSTED BY: Chad Peake
(Employee signature)

Colonial Manor MHC Holdings, LLC

Vs.

Terese Durden

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: June 16, 2026

TO: Terese Durden
and All Unknown/Unauthorized
Occupants
900 9th Ave E Lot 14, Lot # 14
Palmetto, Florida 34221

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, Florida 34221
Telephone: (941) 722-3191
Cheryl Peake, Manager

Certified Mail: # AS99 0710 5270 3303 2787 08

and All Unknown/Unauthorized Occupants
Lot #
Florida
Certified Mail: #

VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL - Return Receipt Requested

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$ 875.00 per month.

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PLEASE GOVERN YOURSELF ACCORDINGLY.

EXHIBIT

D

COMMUNITY USE ONLY:

CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____
CERTIFIED MAIL: # _____

MAILED ON: June 16, 2026

BY: Chad Peake
(Employee signature)

COPY POSTED ON PREMISES (900 9th Ave E Lot 14, Lot # 14)

POSTED ON: June 16, 2026 @ 8 AM
(date/time)

POSTED BY: Chad Peake
(Employee Signature)

Colonial Manor MHC Holdings, LLC

Vs.

Terese Durden



PALMETTO
320 7TH ST W
PALMETTO, FL 34221-4703
www.usps.com

06/16/2026

02:57 PM

TRACKING NUMBERS
5589 0710 5270 3303 2787 08

TRACK STATUS OF ITEMS WITH THIS CODE
(UP TO 25 ITEMS)



TRACK STATUS BY TEXT MESSAGE
Send tracking number to 28777 (2USPS)
Standard message and data rates may apply

TRACK STATUS ONLINE
Visit <https://www.usps.com/tracking>
Text and e-mail alerts available

PURCHASE DETAILS

Product	Qty	Unit Price	Price
First-Class Mail® Letter	1		\$0.78
Palmetto, FL 34221			
Weight: 0 lb 0.60 oz			
Estimated Delivery Date: Thu 06/18/2026			
Certified Mail®			\$5.30
Tracking #:			
5589 0710 5270 3303 2787 08			
Return Receipt			\$4.40
Tracking #:			
5580 5402 5014 4122 0231 70			
Total			\$10.48

Grand Total: \$10.48

Credit Card Remit \$10.48

Card Name: MasterCard
Account #: XXXXXXXXXX7721
Approval #: XXXXX

U.S. Postal Service™ CERTIFIED MAIL® RECEIPT

Domestic Mail Only

For delivery information, visit our website at www.usps.com

Palmetto, FL 34221

Domestic Mail Fee \$5.30

Return Receipt (hardcopy)	\$4.00
Return Receipt (electronic)	\$0.00
Certified Mail Restricted Delivery	\$0.00
Adult Signature Required	\$0.00
Adult Signature Restricted Delivery	\$0.00

0260

3

Postmark
Date

06/16/2026

Postage \$0.78

Total Package and Fees \$10.48

Sender
Teresa Darden
Address and Apt. No., or PO Box No.
900 9th Ave E Lot 14
City and State ZIP+4
Palmetto, FL 34221

US Form 3800, January 1997 and its supplements. See Back for instructions.

ALERT: IMPACTS FROM THE WORLD SOCCER TOURNAMENT HELD IN MAJOR CITIES THROUGHOUT THE U.S. FROM JU...

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Your item was delivered to an individual at the address at 2:47 pm on June 18, 2026 in PALMETTO, FL 34221.

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Delivered, Left with Individual

PALMETTO, FL 34221
June 18, 2026 2:47 PM

Arrived at USPS Facility

SARASOTA FL DISTRIBUTION CENTER
June 17, 2026 3:39 AM

Arrived at USPS Facility

TAMPA, FL 33630
June 16, 2026 8:27 PM

Departed Post Office

PALMETTO, FL 34221
June 16, 2026 4:19 PM

USPS in possession of item

PALMETTO, FL 34221
June 16, 2026 2:56 PM

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